

IMMANUEL KANT
ON PERPETUAL PEACE
A PHILOSOPHICAL SKETCH

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TRANSLATOR'S NOTE

Note that all phrases in square brackets within the text have been added by the translator. For formatting reasons I have changed Kant's footnotes into endnotes. These are hyperlinked to and from the main text, for the reader's convenience. The notes from Kant's text begin with the phrase: *[Kant's note]*, and those provided by the translator begin with the phrase *[Translator's note]*.

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ON PERPETUAL PEACE

We do not need to determine whether the satirical phrase *Perpetual Peace* inscribed above the painting of a graveyard on a Dutch innkeeper's sign is directed at *human beings* in general, or at rulers of states in particular, who never can have enough of war, or perhaps merely at philosophers who dream the sweet dream of peace. However, the author of this essay would like to stipulate one point: the practical politician adopts a particular stance towards the political theorist—he looks down on him with great self-satisfaction as a pedant, whose empty ideas pose no danger to the state, which must proceed on principles drawn from experience. And so people can always let the theorist play at knocking down his eleven skittles all at once, without the *worldly wise* statesman concerning himself about it. This being the case, if a quarrel between the theorist and the statesman arises, the latter should always act consistently and not sniff out dangers to the state behind the former's opinions, which he ventures to offer and which he expresses publicly with no ulterior purpose. With this *clausula salvatoria* [*saving clause*] the writer of this tract wishes formally and emphatically to acknowledge that he is protected against all malicious interpretation.

SECTION ONE CONTAINING THE PRELIMINARY ARTICLES FOR A PERPETUAL PEACE AMONG STATES

1. No peace treaty which is drawn up with a secret reservation of some matter for a future war will be considered valid.

For in such a case the treaty would, in fact, be merely a truce, a suspension of conflict, but not peace, which means an end to all hostilities, so that to attach that word “perpetual” to it is a suspicious pleonasm. The existing causes of future wars may at the time of the treaty perhaps not yet be known even to the contracting parties, but every one of those causes becomes null and void through the treaty of peace, even if perspicacious and skilful research could dig them up out of archival documents. Silent reservations (*reservation mentalis* [*mental reservations*]) concerning old claims to be considered at some time in the future, issues which neither party brings into the discussion at this time, because they are both too worn out to continue the war, while still nurturing the evil desire to use the first favourable opportunity to pursue these claims—that tactic belongs to Jesuitical casuistry and, judged in and of itself, is beneath the

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dignity of rulers, just as a willing participation in this kind of thinking is beneath the dignity of one of their ministers.

But if, given enlightened ideas about shrewd statesmanship, the true glory of the state rests on the constant increase in its power by any means whatsoever, this conclusion will naturally appear academic and pedantic.

2. No state standing on its own (whether it is small or large is irrelevant here) can be acquired by another state through inheritance, exchange, purchase, or donation.

For a state, unlike the soil on which it sits, is not a possession (*patrimonium*) but a society of people, which no one other than itself may command or dispose of. It is like a tree trunk with its own roots, and to incorporate it, like a graft, onto another state means that one is destroying its existence as a moral person and reducing it to a thing. This, therefore, contradicts the idea of the original contract, without which no right over a people is conceivable.¹ Everybody understands what dangers this prejudiced way of acquiring states, which stems from the belief that nations could even marry one another, has brought to Europe right up to our own day (other regions of the world know nothing about it). This has been, in part, a new kind of industry enabling states to make themselves powerful through family alliances without squandering their forces and, in part, a way of expanding the territory they possess.

Moreover, lending the soldiers of one state to another for money to fight against an enemy who is not hostile to the first state should be included here, for the subjects of that state are, in this case, used and abused as if they were things for the state to deal with however it wishes.

3. Over time standing armies (miles perpetuus) shall be completely abolished.

For standing armies constantly threaten other states with war, because their preparedness makes them look as if they are always equipped for one, and they encourage nations to compete with one another in the number of their armed forces, a contest which has no limit. Moreover, given the amount of money spent on standing armies, in the long run peace becomes even more oppressive than a short war, and thus standing armies are themselves the cause of aggressive conflicts launched to ease this financial burden. In addition, paying men to kill or be killed seems

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to involve using human beings as mere machines and tools in the hands of someone else (the state), and this practice cannot be properly reconciled with the rights of humanity in our own person. The situation is entirely different with the periodic and voluntary exercises of citizens under arms, for in this way they keep themselves and their fatherland safe against attacks from beyond their borders.

If the state accumulates a large sum of money, that would have the same effect as a standing army, because it is viewed by other states as a military threat and would force them to make a pre-emptive attack. For of the three powers of the state—the power of *armies*, the power of *alliances*, and the power of *money*—the third would probably be the most reliable instrument of war, if the difficulty of discovering how much money was involved did not create obstacles.

4. No national debts shall be incurred in connection with the foreign affairs of the state.

When the intention is to help the domestic economy (improve roads, create new settlements, establish stores of resources for difficult years of crop failure, and so on), then the expedient of seeking aid outside or inside the state is above suspicion. But when a system of credit is used as an instrument of power by states against each other and grows out of sight, yet remains a secure debt for present demands (because all the creditors do not demand payment at the same moment), it becomes a dangerous financial power. For this ingenious invention of a commercial people [*England*] in this present century creates a treasure for carrying out war, a fund which is greater than the financial resources of all other states collectively. It cannot be exhausted except by an impending tax default (although that will still be postponed for a long time because of the trade stimulus created by the repercussions of the credit on industry and commerce). This easy way of engaging in war, combined with the inclination of rulers to do so, something which seems to be incorporated into human nature, is consequently a great obstacle to perpetual peace. Hence, forbidding this use of credit must be a preliminary article of such a peace, all the more so because bankrupting the state, which is eventually inevitable, must involve many other states in the loss, through no fault of their own, and publicly harm them. That being the case, these other nations are justified at least in forming alliances among themselves against such a state and its arrogant ways.

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5. *No state shall use force to involve itself with the constitution and government of another state.*

For what can justify such an action? Perhaps the offense which one state gives to the subjects of another? But the example of the great evil which people have brought on themselves because of their lawlessness can serve instead as a warning. And generally the bad example which one free person gives to another (as a *scandalum acceptum* [a received offence]) is no injury to the latter.² But the case is different if inner dissension splits a state into two parts, each of which represents itself as a separate state claiming the whole. For an external state to provide assistance to one of these parts could not be considered interference in the constitution of the other state (for at the time it is in a condition of anarchy). However, as long as this inner conflict has not yet reached this stage, such interference by external powers would be an abuse of the rights of an independent people merely struggling with its own internal sickness and would thus itself, in fact, constitute an offence and make the autonomy of all states insecure.

6. *No state at war with another shall permit acts of hostility which would necessarily make mutual trust in a future peace impossible. Such acts include using assassins (percussores) and poisoners (venefici), breaching the terms of surrender, inciting treason (perduellio) in the enemy state, and so on.*

These are dishonourable stratagems. For even in the middle of a war there must be some trust in the way the enemy thinks, because otherwise no peace could be concluded, and the hostilities would turn into a war of extermination (*bellum internecinum*). But war is merely the miserable expedient of asserting one's rights by force in a state of nature, where there is no tribunal which could use the power of law to render judgment. In war neither of the two parties can be declared an unjust enemy, because that would presuppose that a judicial sentence had already been made. However, the *outcome* of the conflict (as in a so-called judgment of God) determines which side is in the right. But between states a punitive war (*bellum punitivum*) is inconceivable, because with them there is no relationship of superiors and inferiors. Thus, it follows that a war of extermination in which the annihilation extended to both sides and which could, in the process, strike at all rights, would allow perpetual peace to occur only over the vast graveyard of the human race. Hence, such a war, along with the use of those methods which lead to it, must be absolutely forbidden. What makes it clear that the above-mentioned methods invariably lead

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there is the fact that once these hellish and inherently despicable arts are employed, they do not long confine themselves within the limits of war, as we see from the use of spies (*uti exploratoribus*), a practice in which people take advantage of the dishonesty of *others* (which can never be eliminated once and for all). These arts are then carried over even into a condition of peace. In this way, the goal of peace is totally destroyed.

* * *

Although the laws listed above are *objectively* (that is, as far as the intention of the rulers is concerned) merely *prohibitive* laws (*leges prohibitivae*), nevertheless, some of them are of the *strict* kind, which are valid in all circumstances (*leges strictae*) and which demand the *immediate* abolition of something (for example, Numbers 1, 5, and 6). Others, however, (like Numbers 2, 3, and 4), which are not exceptions to the rule of law, nevertheless, with respect their application, are *subjectively* broader (*leges latae*). They take circumstances into account and entail permission to *postpone* their application, provided one does not, however, lose sight of their purpose. For example, in the case of Number 2, this principle does not mean that one is permitted to delay until doomsday (or as Augustus used to promise, *ad calendas graecas* [*to the Greek calends*]) re instituting the freedom of certain states which have been deprived of it, so that their liberty would never be restored, but only that a postponement is permitted so that one is not overhasty and thus acting in such a way as to counter the very purpose of the law. For the prohibition here concerns only the *manner of acquisition*, which is no longer valid. It does not refer to the *state of possession*, which, although it does not have the requisite title of *right*, nonetheless has been considered lawful by public opinion in all states at the time of the putative acquisition.³

SECOND SECTION WHICH CONTAINS THE DEFINITIVE ARTICLES FOR A PERPETUAL PEACE AMONG STATES

The condition of peace among human beings who live beside each other is not a natural situation (*status naturalis*), for the natural state is rather a condition of war. In other words, although there is not always an outbreak of hostilities, nevertheless there is a constant threat that this will occur. The state of peace must therefore be *established*, for the cessation of hostilities is not yet a guarantee of peace, and unless such a guarantee is given by each

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group to its neighbour (which can only happen under *conditions governed by law*) one party, who has been demanding such a guarantee, can treat the other as an enemy.⁴

THE FIRST DEFINITIVE ARTICLE FOR PERPETUAL PEACE: THE CIVIL CONSTITUTION IN EACH STATE SHALL BE REPUBLICAN

The *republican* constitution is founded, firstly, in accordance with the principles of the *freedom* of the members of a society (as *human beings*), secondly, in accordance with the principles of the *dependence* of all of its members on a single common system of laws (as *subjects*), and, thirdly, in accordance with the law of *equality* of its members (as *citizens*). Hence, this form of constitution is the only one which emerges from the idea of the original contract, upon which all legitimate legislation of a people must be based.⁵ Where the issue of rights is concerned, this is also the constitution which inherently and originally lies at the foundation of every form of civil constitution. So now the only question is this: Is it also the only constitution which can lead to perpetual peace?

Now, apart from the integrity of its origin—for it sprang up from the pure source of the concept of right—the republican constitution also promises to obtain the desired result, namely, perpetual peace. The reason is as follows: If (as must be the case with a constitution like this) the consent of the subjects is required in order to resolve the question whether there should be a war or not, nothing is more natural than for them to consider very carefully whether they should launch such a dreadful gamble. For they would inevitably be deciding whether to bring upon themselves all the horrors of war (these would include the following: having to fight battles themselves, paying for the costs of the war out of their own goods, making wretched attempts to repair the devastation which war leaves in its wake, and finally, to crown their misery, assuming a burden of debt which will make even peace itself something bitter and which will never be paid off, because new wars will always be an imminent threat). By contrast, in a constitution where the subject is not a fellow citizen, that is, a state which is not republican, deciding to launch a war is the most trifling concern in the world, because the ruling power is not a civil comrade but the owner of the state. With his fine table, his hunting, his pleasure palaces, his court holidays, and so on, he does not suffer in the least from the war, and thus he can make the decision to fight for petty reasons, as if it were a sort of

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pleasant outing, and without worrying about a justification for going to war in order to look respectable. He can leave that unimportant matter to the diplomatic corps which is always prepared to assist with such things.

* * *

So that people do not confuse a republican constitution with a democratic one (as commonly happens), it is necessary to make the following remarks. The forms of the state (*civitas*) can be distinguished either by the difference between the people who possess the highest power in the state or by *the way* the people *are governed* by the ruling power, whatever it may be. The first is properly called *the form of the sovereignty* (*forma imperii*), and it has only three possible options, depending on whether *one person*, or *several people working in combination*, or *all the people* who collectively make up the civil society possess the ruling power (in other words, an *Autocracy*, where a monarch has the power, an *Aristocracy*, where the nobles have the power, or a *Democracy*, where the people have the power). The second way of distinguishing the form of the state is by *the form of the government* (*forma regiminis*). This involves the way the state makes use of its supreme power, an arrangement based on the constitution (the act of the general will by which a crowd of people becomes a nation). From this point of view the form of government is either *republican* or *despotic*. *Republicanism* rests on the political principle of separating the executive power (the government) from the legislative power. *Despotism* is the form in which the state arbitrarily executes laws which it has given itself. Thus, it will carry out the public will to the extent that this is the same as the private will of the ruler. Of these three forms of the state, *democracy* is, in the proper sense of the word, necessarily *despotism*, because it establishes an executive power in which everyone makes decisions for and, if necessary, against any individual who does not agree with them. Therefore, all the people who decide are not really all the people, a situation in which the general will contradicts itself and the principle of freedom.

In fact, every form of government which is not *representative* is really *no form at all*, because no lawgiver can be, in one and the same person, also the one who carries out his own will (any more than the general major principle in a syllogism can be at the same time the subsumption of the particular under that principle in the minor premise). Although the other two state constitutions, [autocracy and aristocracy], are always defective, insofar as they

leave room for such a form of non-representative government, nonetheless, with them it is at least possible that they come close to the *spirit* of a representative system in the way they shape the government. Thus, Frederick II at least *used to remark* that he was merely the highest servant of the state.⁶ The democratic form, by contrast, makes that impossible, because in it everyone wishes to be master.

One can therefore say the following: the smaller the number of people holding state power (i.e., the number of rulers) and, on the other hand, the greater the number of people they represent, the more the state's constitution agrees with the possibility of republicanism, and they can hope with gradual reforms eventually to raise themselves to that level. For this reason, reaching this single perfectly legitimate constitution is more difficult with an aristocracy than with a monarchy, and with a democracy it is impossible, except through a powerful revolution.

However, for a nation the form of government is incomparably more important than the form of the constitution (although a great deal depends on how much or how little the constitution is appropriate to the goals of government).⁷ But if the form of government is to conform to the concept of right, it must incorporate the representative system—the only form in which a republican style of ruling is possible and without which (no matter what the constitution) the government is autocratic and violent. None of the older so-called republics understood this, and for that reason they inevitably dissolved into an absolute despotism, which, of all despotisms, is most easily endured under the sovereignty of a single individual.

SECOND DEFINITIVE ARTICLE OF PERPETUAL PEACE:
THE LAW OF NATIONS SHALL BE BASED ON A
FEDERATION OF FREE STATES

Nations, as states, could be judged like human individuals who, in their state of nature (i.e., in their independence from external laws) inflict injuries on each other by the very fact that they live in close proximity to each other. Every nation can and should, for the sake of its own security, demand from the others that they should combine with it under a constitution similar to one in a civil state, in which each of them can have its rights protected. This would be an *alliance of nations*. However, it would not have to consist of a single state made up of these nations, for that would create a

contradiction, since every state involves a relationship between *those above* (the ones who make the laws) and *those below* (the ones who obey, namely, the people), and many nations in a single state would amount to only a single nation, a situation which contradicts what we are assuming (for here we have to take into account the *right of nations* with respect to each other, to the extent that they exist as so many separate nations and are not to be fused into a single state).

We look with profound contempt on the attachment of savages to their lawless freedom, on the way they would rather fight each other constantly than subject themselves to the restraint of laws which they themselves establish, and thus on their preference for a wild freedom over a rational one, and we consider them a crude, uncivilized, and brutal degradation of humanity. Thus, one would think that civilized peoples (each one united in its own state) would hurry to come out of such a depraved condition as soon as possible. But instead of this each *state* considers its majesty (the majesty of a people is a meaningless expression) arises directly from its not being subject to any external legal compulsion, and the glory of its ruler stems from the fact that without his even having to place himself in any danger, many thousands stand at his command prepared to be sacrificed for some cause which is of no concern to them.⁸ The difference between the European savages and those in America consists for the most part in the fact that, while many American tribes have been totally devoured by their enemies, those in Europe know a better way of using the people they have conquered than making a meal of them: they prefer to have them increase the number of their subjects and thus the quantity of instruments for still more wide-ranging wars.

Given the viciousness of human nature, which reveals itself openly in the unrestrained relations of nations with each other (whereas in a lawful civil condition the constraints of government keep it heavily veiled), one could well be amazed that people have not yet been able to banish the word *right* entirely from the politics of war as pedantic and that no state has as yet been so bold as to advance this opinion in public. For *Hugo Grotius*, *Puffendorf*, *Vattel*, and others (all of them merely tiresome comforters) are always sincerely cited as *justification* for an outbreak of war, although their legal codes, whether treated in a philosophical or diplomatic manner, have not and cannot have the slightest *legal* force (because the states as such do not stand under any common external compulsion), and there is not a single example of a state which was ever moved to give up what it

planned to do by means of arguments, even those armed with the testimonies of such important men.⁹ However, this homage which every state pays to the concept of rights (at least verbally) shows that there exists in human beings an even greater moral predisposition, although it may be asleep at the moment, at some point to become masters of the evil principle in them (for they cannot deny its existence). And they have the same hope for others. If they did not, the word *right* would never be mentioned by states who wish to attack each other, unless merely as a joke, like that Gallic prince who remarked: “The privilege that nature has given the strong over the weak is that the weak are to obey them.”

The ways in which states prosecute their rights can never involve a judicial process, as they could if there were an external tribunal. Their only resort is war. But even if with war and a favourable outcome in *victory*, the question of rights will not be determined. A peace treaty may well bring this particular war to an end, but not the condition of war (people can always find a new pretext, which we cannot declare obviously unjust, because in this situation everyone is a judge in his own cause). Nevertheless, the principle which holds that, according to natural rights, human beings in lawless circumstances “should move out of this condition” does not, thanks to the rights of nations, apply precisely to states, because, as states, they already have an internal legal constitution and thus have developed beyond the point where others can, according to their concept of right, forcefully bring them under a wider legal constitution.

However, reason, on the throne of the loftiest moral-giving power, absolutely denounces war as a legal procedure and, by contrast, makes the condition of peace an immediate obligation. But without a compact of nations among themselves, peace cannot be founded or secured. Hence, it requires a special form of *alliance*, which one could call an *alliance for peace* (*foedus pacificum*). This would not be the same as a *peace treaty* (*pactum pacis*), for, while the latter seeks merely to end a *particular* war, the former seeks to put an end to *all* wars forever. This alliance does not seek to acquire any power whatsoever of the state but merely to maintain and guarantee the *freedom* of a state for itself and at the same time the freedom of other states in the alliance. But these states are not required to subject themselves to public laws and their coercive power (as happens with people in a state of nature).

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Our ability to implement this idea of *federalism* (its objective realization), which is to extend itself gradually over all states and thus lead to perpetual peace, can be readily demonstrated. For if fortunate circumstances lead to the point where a powerful and enlightened people can form themselves into a republic (which, according to its nature, must be inclined to perpetual peace), it will provide a central point of a federal union for other states, so that they can attach themselves to it and in this way secure the condition of freedom for states, in accordance with the idea of the right of nations. Gradually, with more alliances of this kind, the federation can extend further and further.

It is understandable that a people should say, “There shall be no war among us. For we wish to form ourselves into a state, that is, we shall on our own make ourselves a supreme legislative, governing, and judicial power, which will resolve our quarrels peacefully.” But when this state says, “There shall be no war between me and other states, although I recognize no supreme legislative authority which will guarantee my rights and those of the other states,” then it is impossible to understand what it is on which I should ground my trust in my rights, unless it is the surrogate for the alliance basic to civil society, namely, on a free federalism, which reason must of necessity link to the idea of the rights of nations, if in fact there is anything further to think about in relation to that idea.

The notion that the rights of nations contain a right *to make war* is truly unintelligible, for that would be a right to determine what is legitimate, not in accordance with the universally valid laws restricting the freedom of every individual, but by using one-sided maxims driven home by force. Thus, we must understand the rights of nations as follows: people who think this way about war get everything they deserve when they destroy each other and thus find eternal peace in the wide grave which covers all the atrocities of violent acts, along with those who initiate to them. According to reason, there can be no way for states, in their relationships with each other, to emerge from a condition of lawlessness, which entails never-ending war, unless they give up their lawless savage freedom, in the same way individual human beings have done, and learn to live under public and coercive laws and, in the process, construct an ever-growing *state of nations* (*civitas gentium*), which would end up including all the nations of the earth. But since nation states, according to their ideas of national rights, have no desire for this, they reject *in hypothesis* [*in practice*] what is correct *in thesis* [*in theory*].¹⁰ Thus, if we are not to

lose everything, instead of the positive idea of *a world republic*, only its *negative* surrogate of an enduring and ever-expanding *alliance* preventing war may check the flow of hostile tendencies which reject the idea of rights, although there will constantly be a danger that war will break out (*Furor impius intus . . . fremit horridus ore cruento*—*Vergil [Impious inner fury with bloody lips roars savagely] Aeneid* 1.294 ff.).

THIRD DEFINITIVE ARTICLE FOR PERPETUAL PEACE:
THE RIGHTS OF HUMAN BEINGS AS CITIZENS OF THE
WORLD SHALL BE RESTRICTED TO THE CONDITIONS
OF UNIVERSAL HOSPITALITY

The issue here, as in the previous article, is not one of philanthropy, but of *right*, and here *hospitality* (*Wirtbarkeit*) means the right of a stranger who arrives in the land of someone else not be treated by him in a hostile manner. The latter can turn the stranger away, if this can be done without bringing about his death, but so long as the new arrival acts peacefully, he cannot treat him as an enemy. The stranger cannot claim *the rights of a guest* (which would require a special charitable compact of friendship to make him for a certain period a member of the household) but rather the rights of a visitor. All human beings share in a right to present themselves to society, by virtue of their right to a common possession of the surface of the earth, on which, since it is a globe, people cannot be scattered for infinite distances but finally have to put up with living in close proximity to each other. But no one originally had more right to a particular place on earth than anyone else. Uninhabitable parts of this surface, like the sea and deserts, divide this human community, but in such a way that a *ship* or a *camel* (the ship of the desert) makes it possible for people to approach each other over these unclaimed regions and thus to make use of their right to the *surface of the earth*, which men share in common, for potential social interaction. The absence of hospitality along the sea coasts (for example, the Barbary Coast), the habit of plundering ships in nearby seas or of making slaves of stranded sailors or in deserts—where people (for example, the Arab Bedouins) believe that their proximity to the nomadic races gives them the right to rob them—is thus contrary to natural law, that is, the privilege of those visiting a foreign land, a right which does not extend further than the conditions which make it possible for them to *attempt* to interact with the original inhabitants. In this way, distant parts of the world can enter into peaceful relations with each other. These

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relations may end up becoming publicly governed by law, and thus the human race will finally be able to bring a cosmopolitan constitution closer to realization.

If we compare these examples with the *inhospitable* conduct of the civilized nations, especially with the trading states of our part of the world, the injustice which they demonstrate in their *visits* to foreign lands and peoples (which they consider equivalent to *conquest*) fill us with horror. America, the Negro lands, the Spice Islands, the Cape, and so on were for them, at the time of their discovery, lands which belonged to no one. For they considered the inhabitants nothing at all. In the East Indies (Hindustan) using their intention to establish trading posts as a mere pretext, they brought in foreign troops, and, along with them, the suppression of the inhabitants, the incitement of the different states of the Indies to widespread wars, famine, turmoil, disloyalty, and the entire litany of evil which can oppress the human race.

China and Japan (*Nippon*) had made an attempt to cope with guests like this and have therefore acted wisely.¹¹ China permits them coastal access but not entrance into the country, and Japan gave the same permission to only one European people, the Dutch, who, even so, are treated like prisoners and prohibited from social intercourse with the inhabitants. The worst result of this—or, from the standpoint of a moral judge, the best—is that all these trading societies get no satisfaction from their violence, for they are all close to ruin. The Sugar Islands [*Caribbean Islands*]¹²—the headquarters of the most horrific and deliberate slavery—have yielded no real profit, but only an indirect one, and what they produce is nothing to boast about. For they serve to train sailors for warships and thus to carry on more wars in Europe. And this is done by powers which loudly proclaim their piety and, as they drink up injustice like water, wish to be considered among the elect for their religious orthodoxy.

The greater or lesser social interactions among the nations of the earth, which have been constantly increasing everywhere, have now spread so far that a violation of rights in *one* part of the earth is felt *everywhere*. Hence, the idea of a cosmopolitan right is not a fantastic, hysterical way of imagining rights, but a necessary completion of the unwritten code of both national and international law for the public rights of human beings generally and so for perpetual peace. Only under the conditions of international law can we flatter ourselves that we are continually approaching such a peace.

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FIRST SUPPLEMENT CONCERNING THE GUARANTEE OF PERPETUAL PEACE

What provides the *guarantee* of perpetual peace is nothing less than the great artist *nature* (*natura daedala rerum* [*nature the fashioner of things*]), whose mechanical course clearly shows a purposeful design to allow harmony to emerge from the conflicts among human beings, even against their will. That is why this power, when it works as a necessary causal force by laws unknown to us is called *fate*, but when we consider its purposefulness in the course of the world and see it as the profound wisdom of a Higher Cause directed at the objective and ultimate purpose of the human race and predetermining world events, we call it *providence*.¹² We do not, in fact, truly *recognize* this providence in the artistic formations of nature, nor do we *make conclusions* about it on the basis of these designs, but, as in all connections between the forms of things and their final causes generally, we can and must merely *supply the idea of a higher cause* in order to create for ourselves a concept of their possibility, using the analogy of human artistic actions. But to form a picture for ourselves of their relationships to and their harmony with a final moral purpose, which reason at once prescribes for us, is an idea which from a *theoretical* point of view transcends our experience, but from a *practical* point of view is dogmatic, and its reality is well established (for example, in connection with the idea of our having a duty to *perpetual peace* and using the mechanism of nature in its pursuit). And when, as in this case, our concern is merely with theory (and not with religion) the use of the word *nature* is also more appropriate, given the limits of human understanding (for in considering the relationship of effects to their causes, we must remain within the boundaries of possible experience). It is also *more modest*, because to use the expression *providence* to describe something we could know would be the height of presumption—we would be putting on the wings of Icarus in order to come closer to the secret of its unfathomable design.¹³

Now, before we go into this guarantee in greater detail, we first have to explore the circumstances which nature has arranged for those people who act on her great stage, conditions which finally make her assurance of peace necessary. Only after that will we consider the manner in which she provides this assurance.

The arrangements by which nature provides for us consist of the following: (1) she has seen to it that human beings can live in all

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regions of the world; (2) by means of *war* she has scattered them everywhere, even in the most inhospitable regions, so that these will be populated; (3) by the very same means she has forced people to enter into more or less lawful relationships. Surely it is wonderful that in the frozen deserts around the Arctic Ocean, moss still grows, which the reindeer scrapes off from under the snow, so that it can serve as food or draw the sled for the Ostyak or Samoyed, or that salty sand deserts have the *camel*, which seems to have been created for travelling through them, so that those areas will not be left unused. But nature's purpose is even more evident when we learn how, in addition to the fur-bearing animals on the shores of the Arctic Ocean, there are seals, walruses, and whales, whose flesh provides food for the people living there and whose oil gives them fire. But nature's providential care excites the most admiration through the driftwood which she brings to these barren shores (without our having any clear idea of where it comes from). Without this material the inhabitants could not make their means of transportation or their weapons or even the huts where they live.

In this region they have enough to do warring against animals, so that they live peacefully amongst themselves. But what *drove* the people there was probably nothing other than war. Among all the animals, the first one men used as an *instrument of war* was the horse, which they had learned to tame and domesticate at the time the earth was being populated (for the elephant belongs to a later age, a period of luxury for already established states). Similarly, the art of cultivating certain types of grasses called *grains*—ones whose original qualities we no longer know—as well as the copying and refining of different *varieties of fruit* by transplanting and grafting (perhaps in Europe of only two species, the crab apple and the wild pear) could arise only under conditions produced in already established states, where there was secure ownership of land, after human beings had moved beyond the earlier lawless freedom of a life of hunting, fishing, and herding animals to a life of *working the land*.¹⁴ Now salt and iron were discovered, which were perhaps the first articles searched out far and wide for the commercial interactions of different peoples and through which they were initially brought into a *peaceful relationship* with one another and so developed a mutual understanding, a sense of community, and peaceful relations, even with those living further away.

Now, while nature has seen to it that human beings *could* live in all regions of the earth, she has, like a despot, also willed that they

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ought to live all over the earth, even when they had no inclination to do so and even without assuming that this *ought* is linked to an idea of duty arising from a moral law which would bind them to her. Instead she has chosen war as the way to achieve this end. For we see certain peoples whose shared ancestry is revealed in the common features of their speech, like the Samoyeds of the Arctic Ocean, on the one hand, and a people whose speech is similar living two hundred miles away in the Altai Mountains [*in Central Asia*], on the other. Between these two another people, namely, the Mongols, who ride horses and are therefore warlike, have inserted themselves and thus driven one part of the original race far away from the other, into the inhospitable icy regions, which they certainly had no inclination to move to on their own.¹⁵ In the same way those Finns living in the northernmost regions of Europe, who are called Laplanders, are just as far distant from the Hungarians, whose language is related to theirs, because of the intrusion of Gothic and Sarmatic peoples between the two. And what else but war, which nature uses as her means to populate all regions of the earth, could have driven the Eskimos (perhaps ancient European adventurers, a race completely different from all Americans) into the north and the Pescharais into the south of the Americas, right down to Tierra del Fuego?

War, however, does not require a particular reason for its motivation but appears to be grafted onto human nature, even as something inherently noble, to which men are inspired through an urge for glory, without being motivated by selfish desires. As a result, *courage in war* (among the American savages as well as among Europeans in the age of chivalry) is considered something of immediate and great value, not merely *when* war is going on (as is reasonable), but also *in order to* encourage war. Wars have often started merely to demonstrate this courage, so that an inner *worth* has been attributed to war in and of itself. Even philosophers have praised war as a certain ennoblement of human beings, ignoring the proverbial expression of that Greek who said, “War is bad, for it makes more evil people than it destroys.” So much, then, about what nature does *in pursuit of her own purpose* concerning the human race as a class of animals.

Now we come to the questions which concern the essential feature of this design for perpetual peace: “What does nature do in this respect with reference to the purpose which man’s own reason establishes as a duty for him? Hence, what does nature do to encourage his *moral intentions*? And how does she provide a guarantee that man *will* do those things which he *ought* to do,

according to the laws of his freedom, and yet fails to do, without injuring his freedom by using her coercive power? How does nature do this in accordance with the three forms of public right: *constitutional rights*, *international rights*, and *cosmopolitan rights*? When I say of nature that *she wills* this or that to happen, it does not mean that she imposes a *duty* on us to do it (for that can only be done by the practical reason acting without any constraints) but rather that she *does* it herself, whether we are willing or not (*fata volentem ducunt, nolentem trahunt* [*The fates lead the willing but drag the unwilling*]).

1. Even if a people were not forced by their inner quarrels to place themselves under the compulsion of public laws, a war from outside would nonetheless compel them to do so, according to the previously mentioned design in nature, through which every nation finds another neighbouring people pressuring it, and it must form itself internally into a *state* in order to be equipped, as a *power*, against this external nation. Now, a *republican* constitution is the only one which is perfectly adapted to the rights of human beings, but it is also the most difficult to establish and is even more difficult to maintain, so much so that many have asserted that a republic must be a state made up of *angels*, because human beings, given their selfish tendencies, are incapable of such a sublime form of constitution. But now nature comes to the assistance of that admirable but in practice powerless general will of human beings, grounded in reason. She does this precisely through those selfish tendencies, so that the only issue which matters is a good organization for the state (which is certainly within human capabilities), is one in which the state's inner forces are directed against each other in such a way that one checks the destructive effects of the others or neutralizes them. Thus, the outcome, from the point of view of reason, is as if neither of them were present, and so the human being, even if he is not a morally good person, is nonetheless compelled to be a good citizen. The problem of establishing a state, as difficult as that sounds, can be resolved, even for a nation of devils (provided only that they have reason). We may explain the issue as follows: "A large number of reasonable beings who collectively require general laws for their own preservation and yet each of whom is inclined secretly to exclude himself from their control have to be organized and a constitution has to be established for them, so that, even if in their private feelings they work against each other, these feelings nonetheless act as a check against each other in such a way that in their public behaviour the effect is the same as if they had no such evil feelings." There must be a *solution* to such a problem. For we do not have to know how to achieve moral

improvement in human beings, but only how to use the mechanism of nature on people in order to direct the conflict of their hostile attitudes in such a way that they mutually require each other to submit themselves to the control of law and so have to introduce a condition of peace in which the laws have force.

We can observe this happening in actually existing states, even ones which are very imperfectly organized, so that in their external relationships they are already coming very close to what the idea of right prescribes, although their inner morality is certainly not the cause (and we should not expect a good political constitution to come from this inner moral principle but rather the other way around—for good moral culture among a people first comes once such a constitution is in place). Thus, the mechanism of nature through these selfish inclinations, which naturally work against each other in their external effects, can be used by reason as a tool to create room for the realization of reason's end goal, the rule of right, and in the process also promote and safeguard both inner and external peace, to the extent that the state has power to do that. And so the issue here is as follows: nature irresistibly *wills* that right finally has supreme power. What people neglect to do here will finally be accomplished on its own, although with a great deal of inconvenience. "If we bend a reed too much, it breaks, and the person who wants to do too much, does nothing" (*Bouterwek*).¹⁶

2. The idea of international law assumes the *separation* of many neighbouring states independent of one another. Although in such a situation a condition of war already inherently exists (unless a united federation of these states prevents an outbreak of hostilities), nonetheless, according to the idea of reason, this is still better than the fusing together of these nations thanks to a power which has come to dominate the others and has transformed itself into a universal monarchy, because, as the extent of the government's control increases, the laws always keep losing some of their influence, and a soulless despotism, once it has rooted out the seed of good, finally sinks into anarchy. However, every state (or its ruling power) desires to establish a lasting condition of peace in this way, so that, if possible, it rules the entire world. But *nature* wills it otherwise. She uses two means to prevent nations from intermingling and to keep them separate: the differences in the *languages* and in the *religions*, which bring with them a tendency to mutual hatred and pretexts for war.¹⁷ But the developing culture and the way people gradually come closer to a greater agreement in principle lead to a common

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understanding about peace, which, unlike that despotism (the graveyard of freedom), is produced and secured not by a weakening of all forces, but by a balancing of the most energetic competitive forces.

3. Just as nature, on the one hand, judiciously separates nations which the will of each state, even according the principles of international right, would be happy to combine into one by duplicity or force, so, on the other hand, by using mutual self-interest, she also unites states which the idea of a cosmopolitan right would not have kept safe from violence and war. She achieves this with the *spirit of commerce*, which cannot co-exist with war and which sooner or later seizes every nation. For among all powerful means at the state's disposal, the *power of gold* may well be the most reliable. Hence, states find themselves driven to promote noble peace (naturally what motivates them to do this does not come from morality) and, wherever in the world war threatens to break out, to avert it through negotiation, just as if they were in a permanent alliance for this purpose. Great coalitions formed for waging war can, according to the nature of things, happen only very rarely, and they succeed even more rarely. In this way, through the mechanisms in human inclinations, nature guarantees perpetual peace—not, it is true, with sufficient certainty for us to *prophesy* the future (theoretically), but still well enough from a practical point of view. And this makes it a duty for human beings to work towards this goal (which is not merely illusory).

SECOND SUPPLEMENT

A SECRET ARTICLE FOR PERPETUAL PEACE¹⁸

A secret article in transactions dealing with public right is, from an objective point of view, that is, according to its meaning, a contradiction. But subjectively, when we judge it according to the quality of the person dictating it, the clause might well contain a secret which he could consider injurious to his dignity were it announced publicly as originating from him.

The single article of this kind is contained in the following proposition: *The maxims of the philosophers concerning the conditions which make a public peace possible shall be taken into account by those states armed for war.*

However, it seems to be disparaging the legislative authority of a state—to which we must naturally attribute the greatest

wisdom—to seek for instruction from *subjects* (the philosophers) about the principles of its relations with other nations, even though the state is well advised to do so. Therefore, the state will *invite them to do that silently* (while at the same time keeping the matter secret). This amounts to saying that the state will *allow* philosophers to *speak* freely and openly about the general precepts for conducting war and establishing peace (philosophers will do that anyway on their own, unless they are forbidden to do so). For states to come to an understanding with each other on this point does not require them to draw up a special international agreement promoting this goal, for it is already part of the obligation established by universal human reason (which imposes moral laws). However, this does not mean that the state must give the principles of the philosopher precedence over the opinions of the jurist (who represents the authority of the state), but *only* that people *should listen* to the philosopher. The jurist, who has made the *scales* of right and the *sword* of justice his symbols, not only commonly uses that sword to keep all foreign influences away from the scales, but also, when one side of the balance will not move down, throws the sword into it (*Vae victis* [*Woe to the conquered!*]). The jurist who is not also a moral philosopher has the greatest temptation to do this because his official position simply requires him to apply existing laws but not to explore whether these need to be improved. Moreover, although his faculty is, in fact, a lower one, he considers it nobler, because it involves power (as is the case with the other two faculties, medicine and theology). The faculty of philosophy stands on a step very much lower than this combined power. Hence, the saying goes, for example, that philosophy is the *handmaiden* of theology (and the same has been said about her relationship to medicine and law). However, we cannot clearly discern “whether she bears the torch before her gracious ladies or carries their train.”

That kings become philosophers or philosophers become kings is not something we should expect or even hope for, because holding power inevitably corrupts the free judgments of reason. However, kings or sovereign nations (who rule themselves according to laws of equality) should not allow the class of philosophers to disappear or to be silenced, but should let them speak publicly, because this casts light on the work they both do, something indispensable to them. And given that the class of philosophers by its very nature is incapable of stirring up trouble and uniting into political factions, it cannot be suspected of *generating propaganda*.

APPENDIX I
CONCERNING THE DISAGREEMENT BETWEEN
MORALITY AND POLITICS
IN CONNECTION WITH PERPETUAL PEACE

Morality is inherently a practical activity [*Praxis*] in an objective sense, for is it the embodiment of unconditionally commanding laws, according to which we *ought* to act, and, once we have conceded the authority of this idea of duty, it is clearly inconsistent to continue wishing to assert that nevertheless we *cannot* act in that way, because then this idea of morality would collapse on its own (*ultra posse nemo obligatur* [*no one is obliged beyond what is possible*]). As a result, there can be no conflict between politics as the practical doctrine of right and morality as a theoretical doctrine of right (hence, no conflict between theory and practice). For such a dispute to arise, we would have to understand the word *morality* to mean a general *doctrine of shrewdness*, that is, a theory of precepts for selecting the most suitable means for achieving those ends which we have determined are to our advantage—and that would be to deny the very existence of morality.¹⁹

Politics says “*Be as clever as serpents.*” Morality adds (as a limiting condition), “*and as innocent as doves.*” If both precepts cannot stand together in a single command, then there is truly a dispute between politics and morality. If, however, the two are in harmony throughout, then the idea of opposition is absurd, and the question about how the conflict between them might be reconciled does not even arise as a task to be addressed. Although the saying *Honesty is the best policy* involves a theory which practice unfortunately very often contradicts, nonetheless, the equally theoretical saying *Honesty is better than all policy* is infinitely higher than any objection one could make to it and is, indeed, the necessary condition of policy. The god who marks out the boundaries of morality does not yield to Jupiter, the god determining the boundaries of force, for Jupiter still stands subject to fate. That is to say, reason is not sufficiently enlightened to perceive the series of predetermining causes which would allow it to announce with certainty the happy or unhappy results of everything human beings do in accordance with the mechanisms of nature (although it does allow us to hope that these results will be what we want). However, reason is bright enough to illuminate for us everything we have to do in order to remain on the beaten path of duty (following the rules of wisdom) and thus to pursue our final end.

Now, the practical man (for whom morality is merely theoretical, even as he concedes that what *ought* to be done *can* be done) bases his dreary rejection of our good-natured hope essentially on the following point: he pretends that he can predict, on the basis of human nature, that people will never be willing to do what is required to bring about that goal which leads to perpetual peace. Of course, the will of *all individual* human beings to live under a lawful constitution based on principles of freedom (the *distributive* unity of the will of *all*) is not enough to achieve this goal. Instead, *everyone* must desire this condition *together* (the *collective* unity of their united wills). This solution to a difficult problem is still required so that civil society may become a totality. Since, over and above the differences among the particular wills of all the individuals, one still needs to add a unifying cause in order to bring out a common will, something which no collection of individual will is capable of doing, it follows that, for the *implementation* of this idea in practice, no other beginning for a state of justice can be relied upon other than one created by *force*, on whose coercive power public right will afterwards be based. This situation, then, in actual experience naturally leaves us right from the start expecting huge departures from the theoretical idea of right (since we can hardly assume that the lawgiver in this matter will, on the basis of his moral sentiments, simply leave it to the people to bring about a legal constitution through their common will, once the unification of a wild multitude into a nation has taken place).

What this means is that once someone has the power in his hands, he will not let the people determine the laws for him. In the matter of how a nation is to seek its rights with respect to other nations, a state that is now in a position where it is not subject to any external laws will not make itself dependent on the judicial tribunals of others, and even a continent, when it feels it is superior to another continent, which, as it so happens, does not stand in its way, will not neglect to use means to increase its power by robbing that continent or even conquering it. And thus all theoretical plans concerning national, international, and cosmopolitan rights fade away into empty impractical ideals, while, by contrast, a political practice which is based upon empirical principles derived from human nature and which does not consider it demeaning to draw instruction for its maxims from the way the world actually operates is the only way one can hope to find a sure foundation for building a political system based on expediency.

Of course, if there is no freedom and no moral law founded on it and if whatever happens or can happen is merely the mechanical working of nature, then practical wisdom would consist entirely of politics (as the art of using this mechanism to govern people), and the concept of rights is an empty idea. But if we find that the concept of rights is inextricably and necessarily linked to politics and if we even raise it to the position of a limiting condition of politics, then we must admit that the two of them can be reconciled. I can imagine a *moral politician*, that is, a man who thinks of the principles of national expediency in such a way that they could coexist with morality, but I cannot imagine a *political moralist*, someone who concocts a morality for himself so that it helps to promote benefits for the statesman.

The moral politician will adopt the following basic principle: if we ever come across a defect in the political constitution or in our international relations which we could not have avoided, there is a duty, especially for those who govern the state, to take care to correct it as soon as possible, so that it can be made to comply with natural right, as that presents itself as a model before our eyes in the idea of reason, even if that comes at the expense of their own self-interest. Now, to rip apart the bonds of a state or a cosmopolitan union before an even better constitution is ready to take its place is contrary to all political discretion, which, in this respect, agrees with morality. Thus, it would be absurd to demand that such a defect in the constitution must be immediately and impetuously altered. But at least one can demand that the ruling power seriously acknowledge the notion that such a change is necessary, so that it can continue constantly to approach the end goal (the best constitution according to the laws of right).

A state can *govern* itself in a republican manner, even if it still has, according to its existing constitution, a despotic *arrangement of the ruling power*, until the people gradually become capable of being influenced simply by the idea of the authority of the law (just as if the law had physical power) and, as a result, are found competent enough to give themselves their own laws (a practice which is originally founded on right). But even if the violence of a *revolution* produced by a bad constitution were to set up by unlawful means a constitution more in keeping with the law, then it would have to be no longer permissible to lead the people back to the old constitution, although during the revolution anyone who took part in it either violently or surreptitiously would have been rightly subject to the punishment meted out to rebels. However,

as far as the foreign relations of a state are concerned, one cannot demand that a state give up its constitution, even though it could be a despotic one (and thus stronger in its dealings with external enemies), so long as there is a danger that it could be immediately swallowed up by other states. As a result, faced with such a proposed change, a state is permitted to delay its implementation until a more favourable opportunity.²⁰

It could also always be the case that the despotic moralists (who are failures in practical matters) collide with political expediency in many ways (with measures they have taken up or recommended too quickly). When they make these mistakes against nature, experience must bring them gradually to a better path; whereas, moralizing politicians, by making excuses for political principles which contravene what is right, under the pretext that human nature is *not capable* of good the way the idea of reason stipulates, do everything within their power to make improvement *impossible* and to perpetuate violations of rights. Instead of following the practice [*Praxis*] which these shrewd statesmen boast about, they circumvent the issue with *practices* [*Praktiken*], and, while they are careful to tell those presently in power what they want to hear, in order not to neglect their own private interests, they give away the people and, where possible, the entire world. In this way, they are like genuine lawyers (the ones who act like tradesmen, not those who *legislate*) when they presume to meddle in politics. For since it is not their business to reason about legislation itself but rather to enforce the present laws of the land, they must always consider every legal constitution presently in existence—and, if this is altered by a higher power, the one which follows it—as the best, where everything is in proper mechanical order. This adroitness of theirs at turning their hands to anything may delude them into thinking that they also have the ability to judge the general *principles of a political constitution* according to the ideas of right (hence, not empirically but *a priori*).²¹ When they boast about how they understand *people* (which, of course, is something we expect, because they have to deal with a great many of them), but without knowing anything of *human beings* and what can be made of them (something which requires a higher anthropological point of view) and apply these ideas of theirs to civil and international right, as reason requires, they can take this step only in a spirit of sophisticated subterfuge. For they will follow their usual practice (of applying laws of a mechanical system according to coercive principles despotically handed down), even where the only legal compulsion the ideas of reason are willing to recognize is one

which meets the principles of freedom, through which a durable and legitimate political constitution becomes for the first time possible. The supposedly practical man believes he can solve the problem empirically by circumventing this idea of reason and consulting his experience of how the constitutions which have up to this point lasted the longest were established, even though they were for the most part contrary to right. The precepts which he uses for this task (although he does not allow them to be publicized) involve more or less the following sophistic maxims:

1. *Fac et excusa* [*Act and make excuses*]. Seize a favourable opportunity for unauthorized appropriation of something (a right of the state either over its own people or over another neighbouring state). One can gloss over the use of force and offer a justification far more easily and fluently *after the fact* (particularly in the first case, where the ruling power within the state is also the legislative authority, which people must obey without raising objections) than when one wants to think up convincing reasons for the action in advance and wait for all the objections. This boldness even provides a certain appearance of inner conviction that the act is just, and the god *bonus eventus* (the god of success) is the best advocate afterwards.
2. *Si fecisti, nega* [*If you have done something, deny it*]. In the case of any crime you have committed—something which has, for example, led your people to despair and thus to rebellion—you should deny that it is *your* fault. Instead you must insist that it was the unruliness of the subjects or even, when it is a matter of your seizing power of a neighbouring state, the fault of human nature: if we do not forcefully anticipate the aggression of someone else, we can certainly count on the fact that he will anticipate us and use force to take what is ours.
3. *Divide et impera* [*Divide and conquer*]. This means the following: if there are certain privileged leading citizens among your people who have chosen you merely as their ruler (*primus inter pares* [*the first among equals*]), make them quarrel with each other, and create divisions between them and the people. Then, set yourself up as the champion of the people under the pretense of offering them greater freedom, and now everything will depend upon your unconditional will. Or if you are dealing with foreign states, then inciting disagreements among them, while appearing to assist the weaker ones, is a fairly reliable way of subjecting them to your will one after the other.

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Now, it is true that no one is deceived by these political precepts, for they are all universally known already. And it is not the case that there is something to be ashamed of with them, as if their injustice were just too patently obvious. For, since great powers are never shamed by how the crowd of common people judge them, but only by what one of the other powers might think, as far as the above principles are concerned, what can embarrass these powers is not their being publicly known but only their *failure to succeed* (for, as far as the morality of those precepts goes, they are all in agreement). And so what is always left is their *political honour*, on which they can securely rely: that is, *increasing their own power*, in whatever way that can be achieved.²²

* * *

From all these snake-like contortions of an amoral doctrine of expediency, which seeks to derive a condition of peace among human beings out of the warlike conditions of a state of nature, at least one thing is clear: people cannot evade the idea of right in their relationships, both public and private, and they do not dare openly to ground politics merely on the manipulations of expediency and thus to reject all obedience to the idea of public right (this is especially striking with international right). By contrast, they allow this concept all the honour inherently due to it, even if they have to dream up a hundred evasions and subterfuges in order to avoid it in practice and assign authority to the shrewd use of force as the origin and unifying element of all right. In order to do away with this sophistry (if not to the injustice which it glosses over) and to bring the false *representatives* of the powerful people in the world to confess that they are not speaking on behalf of *right*, but rather of *might*, whose tone they adopt (just as if in this matter they had the right to give orders), it will be good to lay bare the deception thanks to which people hoodwink themselves and others and to discover the highest principle from which the goal of perpetual peace is derived, thus showing how everything evil which stands in the way of this goal is due to the fact that the political moralist begins where the moral politician rightly ends and, by subordinating principles to an end (that is, putting the cart before the horse), defeats his own purpose of bringing politics and morality into agreement. In order to make practical philosophy internally consistent, we must first of all determine the answer to the following question: In dealing with issues of practical reason, do we have to start from the *material principle* of practical reason—that is, from the *goal* (as an object of free choice)—or from the *formal* principle—that is,

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the principle (which rests only on freedom in external relations) which states: *Act in such a way that you can will your maxim should become a universal law (whatever the goal may be)?*²³

There is no doubt that the second principle must come first, for, as a principle of right, it is unconditionally necessary; whereas, the first one is essential only if one assumes that the empirical conditions of the proposed goal are present, that is, that the goal can be achieved. Besides, if this purpose (for example, perpetual peace) were also a duty, then it would have to be derived from the formal principle of the maxims guiding external action. Now, the first principle, the one used by the *political moralist* (dealing with the problem of *constitutional, international, and cosmopolitan rights*), involves purely *technical tasks (problema technicum)*. The second, by contrast, as a principle of the *moral politician*, for whom the issue is a *moral task (problema morale)*, is vastly different from the other in the procedures one uses in order to bring in perpetual peace, which people desire not merely as a physical benefit, but also as a condition arising from an acknowledgment of their duty.

The solution of the first problem, that is, of political expediency, requires considerable knowledge of nature, so that one can use her mechanical system for the end one has in mind, and yet, as far as perpetual peace is concerned, the result of all this knowledge is uncertain. This is the case no matter which of the three categories of public right we select. It is unclear what one should do to keep the people obedient as well as prosperous for a long period of time: Is it better to treat them severely or to feed their vanity? Should sovereign authority be vested in a single individual, or in several leaders acting collectively, or perhaps merely in an aristocracy of government officials [*Dienstadel*], or in the power of the people within the state?²⁴ For every form of government, history provides us examples which have had the opposite effect (with the single exception of a genuine republican government, a system which only a moral politician can imagine). Even more uncertain is an *international right* allegedly established on statutes planned by government ministers, for that, in fact, is nothing but empty words. It rests on treaties which, even as they are being ratified, contain a secret reservation—the right to violate them. By contrast, the solution to the second problem—that is, to the issue of *wisdom in the state*—naturally forces itself upon us, so to speak, is obvious to everyone, puts all artificiality to shame, and, in the process, leads directly to the goal. But one needs to remember prudence and not use force to bring it in too quickly,

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but rather continually draw nearer to it when circumstances are favourable.

This point may be stated as follows: “Seek ye first the kingdom of pure practical reason and its *righteousness*, and then your goal (the blessing of perpetual peace) will come to you on its own.” For morality inherently has a unique quality—and this applies to the moral principles of public right (and consequently to a politics that can be known *a priori*), in that the less it makes a person’s conduct dependent on his proposed goal, the physical or moral advantage he has in mind, the more it is in general agreement with this end. This comes about precisely because it is the general will (in a people or in the relations of different peoples to each other) given *a priori* which is the sole determinant of what is right among human beings. But if this union of the will of all individuals in practice proceeds consistently and according to the mechanism of nature, it can at the same time be the cause which brings about the effect one is aiming at and effectively realize the idea of right. Thus, it is, for example, a basic principle of moral politics that a people should unite together in a state, in accordance with the only valid ideas of right, those of freedom and equality. This principle is not based on expediency but on duty.

Now, political moralists may propose all sorts of counter-arguments involving the natural mechanism of a crowd of people who enter into a society, something which weakens these principles and frustrates their purpose. Or they may seek to prove their assertion with examples of poorly organized constitutions from both ancient and modern times (for example, democracies without a system of representation). But these political moralists do not deserve a hearing, mainly because such a corrupting theory could itself well bring about the evil which it prophesies, for it throws human beings into a class with the other living machines which need only the awareness that they are not free creatures to make them, in their own judgment, the most miserable beings in the world.

The proverbial saying *fiat justitia, pereat mundus* [*let justice prevail, though the world perish*] is somewhat overstated, but it is true. We may translate it as follows: “Let justice prevail, even though all the knaves in the world perish in the process.” It is a bold principle of right, which cuts off all the crooked pathways indicated by cunning or force. However, we must not misunderstand it as granting permission for someone to pursue his own right with the utmost severity (that would conflict with his ethical duty), but

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rather interpret it as an obligation laid on those who wield power not to deny or to curtail anyone's right because of unfavourable feelings or sympathy with others. This requires, in particular, an inner political constitution drawn up according to the pure principles of right and then the union of that state with other neighbouring or even distant states (analogous to a universal state) for the legal resolution of their conflicts. This proposition means to suggest nothing more than the following: political maxims must not begin with the prosperity and happiness that a particular state can expect from adhering to them, that is, with the end goal which each state makes the objective (of its *will*) as the highest (but empirical) principle of political wisdom; instead, such maxims must begin with the pure idea of the duty of right (with the *ought*, whose principle is given *a priori* through pure reason), no matter what the physical consequences of that may be. The world will certainly not perish because the number of wicked people in it is reduced. What is morally evil has, by its very nature, this inseparable characteristic: in its purposes (especially in its relationship with other like-minded people) it is self-contradictory and self-destructive, and so it makes room for the moral principle of goodness, even if such progress is slow.

* * *

Thus, there is *objectively* (in theory) no quarrel at all between morality and politics; whereas, *subjectively* (in the selfish tendency of human beings, which we must not call their moral practice [*Praxis*], because it is not based on the precepts of reason) such a conflict exists and may well remain forever, because it serves as the whetstone of virtue. In the present case, the true courage of virtue (according to the principle *tu ne cede malis, sed contra audentior ito* [*you must not yield to evils but confront them more boldly*—*Virgil, Aeneid, 6.96*]) does not consist so much of firmly resolving to face up to the evil and self-sacrifice which one has to take on, but rather of seeing, confronting, and overcoming the far more dangerous, lying, wily, and treacherous evil principle within ourselves, which pretends with sophisticated reasoning to justify all violations of right as a weakness in human nature.

In fact, the political moralist can say that the ruler and the people or one nation and another do no wrong *to one another* when they attack each other with force or deceit, although with such actions they generally do wrong by refusing to respect the idea of right, which is the only thing on which perpetual peace could be based. For since one party oversteps his duty with the respect to the

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other one and the latter's feelings are every bit as wrongfully directed against the former, they both fully and rightly deserve what happens when they wear each other out, but in such a way that enough of this contest remains to allow the game to continue to the most remote ages, so that at some point their distant posterity will take their example as a warning.

In having the world operate this way, providence is justified, for the moral principle in human beings is never extinguished, and their reason, which is capable of the pragmatic implementation of ideas of right according to that principle in the process constantly grows stronger through the continuing advance of culture. But with it also grows the guilt for those transgressions. However, if we assume that the human race will not or cannot ever be any better off, then Creation itself—the fact that such corrupt beings should be on earth at all—appears incapable of justification by any theodicy. But this is far too lofty a position for us to judge from, as if we could theoretically apply our ideas of wisdom to a supreme power unknowable to us. We will be inevitably driven to such desperate conclusions, unless we assume that the pure principles of right are objectively real, i.e., that they let themselves be realized, and that thus they must be taken into account, both by those within the state and, beyond that, by states in their relations with each other, no matter what objections empirical politics may raise.

True politics can thus take no step, without previously paying homage to morality. Although politics is indeed an inherently difficult art, nevertheless, uniting politics with morality requires no art at all, for morality cuts the knot which politics is unable to loosen as soon as the two come into conflict. The rights of human beings must be held sacred, no matter how great the sacrifice to the ruling power. We cannot go half way here and dream up a pragmatically conditioned right (between right and utility). Instead all politics must bend the knee before right and, in so doing, can hope to reach a stage, however slowly, where it will always shine.

APPENDIX II ON THE UNANIMITY BETWEEN POLITICS AND MORALITY ACCORDING TO THE TRANSCENDENTAL IDEA OF PUBLIC RIGHT

When I abstract from all the *materials* of public right (on the basis of the different empirically given relationships of people in a state

or of states among themselves), following the customary thinking of professors of law, I am still left with the *Form of Publicity*, whose possibility is inherently contained in every legal claim, since without that there would be no justice (which can only be imagined as something we can *publicly proclaim*) and hence no right either, for right can only be conferred by justice.

Being capable of publication must be a characteristic of every legal claim. And since one can very easily judge whether it holds in any particular case which arises, in other words, whether it can be reconciled with the principles of the agent or not, this standard provides a readily applicable criterion which is found *a priori* in reason, so that in a particular case we can immediately recognize the falsity (its opposition to what is right) of the alleged claim (*praetensio iuris*), as if by an experiment of pure reason.

Once we have abstracted from everything empirical contained in the idea of political and international law (such as the viciousness in human nature which makes coercion necessary) we can call the following proposition the *transcendental formulation* of public right:

Where the rights of other people are involved, every action whose maxim is not compatible with publicity is unjust.

One should not look on this principle as merely *ethical* (part of the doctrine of virtue) but also as *juridical* (referring to human rights). For a maxim which I cannot allow to be *openly declared* without in the process also frustrating my own purpose and which I must keep a deep secret if it is to succeed—if I cannot *publicly announce* it, without thereby inevitably prompting everyone's opposition to my proposal—then this necessary and general disagreement of all the others with me, a resistance which is understandable *a priori*, can originate in nothing other than the injustice with which such a maxim threatens everyone. Moreover, this principle of publicity is merely *negative*, in other words it serves only as a means by which we can recognize what is *not right* concerning others. Like an axiom, its certainty cannot be demonstrated. In addition, it is easy to apply, as we can see from the following examples of public right.

1. *In the matter of political right (ius civitatis)*—that is, matters within the state—the following question arises, which many people consider difficult to answer and which the transcendental principle of publicity resolves quite easily: “Is rebellion a legitimate way for people to throw off the oppressive power of a

so-called tyrant (*non titulo sed exercitio talis [not in title but in the way he acts])?*” The rights of the people have been injured, and to usurp the tyrant would not be a violation of his rights. Of that there is no doubt. Nonetheless, it is in the highest degree wrong for the subjects to seek their rights in this manner, and, if they were defeated in the conflict and later had to suffer the harshest punishment because of their rebellion, they would have even less justification for complaining about injustice.

Now, one can make many subtle arguments here for and against, if one wants to settle the matter with the dogmatic deduction of principles of right. But by itself the transcendental principle of the publicity of public right can spare us a long-winded discussion. In applying this principle, the people ask themselves, before drawing up the civil contract, whether they would dare to make publicly known the maxim of their intention to rebel at certain times. We can readily see that if, while establishing a state constitution, we wanted to set the condition that in certain circumstances force could be used against the ruling power, then the people must be arrogating to itself a legitimate power over the sovereign. But in that case, he would not be the head of state or, if both of these clauses were made conditions for the establishment of a state, then creating a state would be impossible, even though that was what the people were proposing.

The injustice of rebellion is thus illuminated by the fact that its maxim, if we were to *openly publicize* it, would make its own purpose impossible. We would of necessity have to keep it a secret. But this secret would simply not be necessary on the part of the ruler of the state. He can freely proclaim that in every rebellion the leaders of the insurrection will be punished with death, even if these ringleaders believe that he was the first to violate fundamental laws. For if the ruler is aware that he possesses *irresistible* power (and we must assume this in any civil constitution, because any sovereign who does not possess sufficient power to protect an individual member of the people against another also has no right to give him orders). Hence, he need not worry about frustrating his own purposes by the publication of his maxim. It is also entirely consistent with this position that, if the popular rebellion succeeds, the sovereign move back to the status of a subject. Thus he is not entitled to initiate any uprising to restore his rule, but he also need have no fear of being legally summoned to account for his previous administration.

2. *Matters concerning international right*: One can talk about international right only if one assumes that some sort of law-governed situation is in place (that is, the external condition under which a person can truly be given a right), because, as a public right, the very idea of it already entails the publication of a common will which assigns to each state its individual rights, and this *status iuridicus* [*legal status*] must arise out of some sort of contract, which cannot be based on compulsory laws (like the contract which gives birth to a state), but which can at most rest on a *continuing free association*, like the above-mentioned federation of different states. For in a state of nature, a situation which lacks any form of *law-giving* to connect the different (physical or moral) individuals in some effective way, there can be nothing other than a merely private right. And here again a conflict arises between politics and morality (if we consider morality as the doctrine of right), a dispute where we can easily apply the criterion of the publicity of maxims, but only in such a way that the contract binds the states with the sole intention of keeping the peace among them and between them and other states, but not in any way with a view to acquiring new possessions. I offer here the following examples of conflicts between politics and morality, along with their solutions.

(a) “When one of these states has promised something to another state, for example, to provide assistance, or to transfer certain lands, or to give subsidies, and so on, the question is whether in a particular case where the welfare of the first state is involved, the ruling power can break its promise by claiming it must be regarded as a double person, first, as a *sovereign*, since it is not answerable to anyone in its own state, but then, second, merely as the highest *official of the state*, who must be accountable to the state, and then by concluding that any obligations it had assumed in the first capacity as a sovereign it can set aside in its second capacity as a state’s official.” But if a state (or its sovereign) were to let its maxims be publicized, then naturally every other state would either run away from it or else unite itself with others to resist its presumptuousness. That demonstrates how, by applying this principle of publicity, politics, for all its cunning tricks, would thwart its own purpose, and so the maxim quoted above must be unjust.

(b) “If a neighbouring power has grown so large that it has become formidable (*potentia tremenda*) and arouses concern, can one assume that because it is *able* to oppress others it also *desires* to do so, and does that give those states with less power a right to

a united attack against it, even without some previous offence?” A state which wanted *publicly* to affirm this as its maxim would only bring about the evil even more surely and quickly. For the greater power would anticipate the smaller ones and, as far as the alliance of those weaker states is concerned, that is only a weak reed against someone who understands how to use the precept *divide et impera* [*divide and conquer*]. This maxim of political expediency, once openly announced, thus necessarily frustrates its own purpose and, as a result, is unjust.

(c) “If a smaller state by its location divides the continuity of a larger state, which needs this continuity for its own preservation, is the larger state not justified in overwhelming the smaller state and uniting their two territories?” It is easy to see that the greater state must not let such a maxim become publicly known in advance. For then, either the smaller states would combine beforehand, or other powers would compete for this prize. Hence, publicizing the maxim would make it unworkable, and this would indicate that the precept is unjust. Indeed, it could rank very high on the scale of injustice. For the fact that the object of injustice is small does not prevent the manifest injustice done to it from being very great.

3. So far as *cosmopolitan right* is concerned, I will pass over this subject in silence, since the analogy between it and international law makes its maxims easy to state and evaluate.

* * *

So now with the principle of the incompatibility of the maxims of international law with publicity we have a good benchmark for the *lack of agreement* between politics and morality (as a doctrine of right). But we also need to be instructed about the condition under which its maxims agree with the right of nations. For we are not permitted to draw the reverse conclusion that because the maxims are compatible with the principle of publicity they are for that reason also just, since whoever has a decisive sovereign power does not have to keep quiet about his maxims. The condition which makes international law at all possible is this: first of all, a *law-governed condition* must be in place. For without this there is no public right, and the only right which we can imagine where there is no public right (in a state of nature) is merely private right. Now, we have seen above that a situation where there is a federation of states which is directed only at preventing war is the only *legal* condition compatible with the *freedom* of these

states. Thus, the agreement between politics and morality is possible only in a federated union (which is also, according to the principles of right, established *a priori* and is essential), and all political expediency derives the basis of its legitimacy from the creation of such a federation to the greatest possible extent. Without that goal, all its political cleverness is sophistry and concealed injustice. Now, this sham politics has its own *casuistry*, which puts the best Jesuit schools to shame—that is, the *reservatio mentalis* [*mental reservation*]. For in drawing up public contracts, it employs certain expressions which one can interpret to one's own advantage when the occasion presents itself, if that is what one wishes to do (for example, using the difference between the *status quo de fait* and *de droit* [*the status quo in fact and in right*]). It also invokes the doctrine of *Probabilism* [*Probabilismus*] to fabricate evil intentions which it attributes to others, or it even makes the probability of their possible predominance a justifiable ground for undermining other peaceful states. Finally, it commits its *peccatum philosophicum* [*philosophical sin*] (peccadillo, bagatelle), when it claims that swallowing up a *small* state should be a readily pardonable triviality, if it works to the advantage of a much *greater* state, an action which allegedly benefits the entire world.²⁵

Duplicity in these matters encourages politics, when dealing with morality, to use one or other branches of morality to pursue its own purposes. Both the love of our fellow human beings and respect for their rights are duties. But the former is only a *conditional* duty; whereas, the latter is an *unconditional* duty, which is absolutely binding. And anyone who wants to surrender to the sweet feeling of doing good must first be completely confident that he has not violated what is right. Politics is easy to reconcile with morality in the first sense (as ethics) so that human beings surrender their rights to those with sovereign power over them. But with the second branch of morality (as a doctrine of right), before which politics must bend its knees, politics finds it advisable to have nothing whatsoever to do with contracts and prefers to deny morality all reality and to interpret all duties as nothing but good will. Philosophy would easily frustrate the duplicity of shady politics by publicizing its maxims, if politics were only willing to have the courage to allow the philosopher a chance to make his own views known.

With this purpose in mind, I offer another transcendental and affirmative principle of public right, whose formulation would be as follows:

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All maxims which require publicity (in order not to miss their goal) are in agreement with right and with politics.

For if they can attain their end only when they are publicized, then they must be consistent with the universal public goal (happiness), and it is the essential business of politics to be in agreement with this (to make members of the public satisfied with their condition). However, if this goal is to be attained *only* by publicity, that is, through the distancing of all mistrust for the maxims politics uses, then these maxims must be in harmony with the rights of the public, for this is the only condition which makes a unity of ends possible for everyone. I must postpone to another time a further explanation and discussion of this principle, but one can appreciate that this is a transcendental formulation because all the empirical conditions (of a doctrine of happiness)—the material facts of the law—have been removed and it is concerned only with the form of universal legality.

* * *

If it is our duty to realize a condition of public right and if, at the same time, there are grounds for hope we can achieve that, although only by an endless progress which takes us closer to it, then perpetual *peace*, which follows what have so far been falsely called peace treaties (which are really truces suspending hostilities) is not an empty idea, but a task which is gradually resolving itself and is always coming nearer to its goal (because the time it takes to make equal advances will, one hopes, grow shorter and shorter).

Endnotes

¹[*Kant's note*] A hereditary kingdom is not a state which can be bequeathed to some other state. However, the right to rule it can be passed on to another physical person. In that case, the state acquires a regent, but the latter, in his capacity as ruler (that is, as someone already in possession of another kingdom), does not acquire the state. [[Back to Text](#)]

²[*Translator's note*] A *scandalum acceptum* is a term from Catholic theology. *Scandalum* (*scandal*) refers to an evil act (or failure to act) which leads to someone else's spiritual ruin. A *scandalum acceptum* (*a received scandal*) is a term for an action which is perceived as scandalous thanks to the ignorance or weakness of the person judging it (when, in fact, the person carrying out the action may have behaved quite morally according to his own standards). [[Back to Text](#)]

³[*Translator's note*] The *calends* was the first day of the month in the Roman calendar, but the Greeks had no *calends*. Hence, postponing an action *ad calendas graecas* means never doing it.

[*Kant's note*] The question whether, in addition to commands (*leges praeceptivae*) and prohibition (*leges prohibitivae*) there could also be permissive laws (*leges permissivae*) of pure reason has up to this point been doubted, and not without reason. For laws in general contain a principle of objective practical necessity, but permission contains a principle of the contingency of certain actions in practice. Hence, a *permissive* law would involve the necessity for an action which no one could be compelled to carry out, and that would be a contradiction, if the object of the law in both examples had one and the same meaning. However, in this case with the permissive law, the presumed prohibition concerns only the future method of acquiring a right (for example, through inheritance), but the freedom from this prohibition, in other words, the permission, concerns the present state of possession, which, although it is illegal, can continue to endure even longer in the transition from a state of nature into civil society, as *honourable ownership* (*possessio putativa*), in keeping with permissive laws of natural right, even though a putative possession is forbidden in a state of nature, as soon as it is recognized for what it is, and a similar method of acquiring possession in the civil state which emerges (after the transition has occurred) is also prohibited. This privilege [*Befugnis*] of continuing ownership would not occur if the alleged possession had taken place in civil society, for then it would be a violation of someone's rights, which would have to end as soon as its illegality was discovered.

Here I have wanted, merely in passing, to draw the attention of teachers of natural law to the idea of a *lex permissiva* [*permissive law*], which manifests itself in a systematic classification of reason, particularly because it is often used in civil law (involving statutes), but with this difference: the prohibiting law stands alone by itself, while permission is not brought into it as a limiting condition (as it ought to be). Instead it is thrown in among the exceptions. So the law then says: This or that is forbidden, *except* Number 1, Number 2, Number 3, and so on in an endless series. The exceptions are added to the law only haphazardly, not according to some principle, but by groping around among cases as they come up. Otherwise the conditions would have had to have been incorporated *into the formulation of the prohibitive law*, and that would have immediately made it a permissive law. Thus, it is unfortunate that the ingenious question posed in a prize competition by *Count von Windischgrätz*, a man as wise as he is acute, has remained unanswered and has been quickly abandoned, since it emphasized the very point I mention. For the possibility of such a formulation (similar to those in mathematics) is the only real touchstone for a piece of legislation which would remain consistent. Without that, the so-called *ius certum* [*certain law*] will remain a pious wish, and we can have merely general laws (which are valid for the most part) but no universal laws (which are valid in every case), something which the idea of law seems to require.

[*Translator's note*] Count von Windischgrätz (1744-1802) had posed a question about writing unambiguous land contracts. Kant's point here is that, while the

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six preliminary articles for peace must all be firm laws, some of them would not be immediately binding. For example, if Nation A conquers Nation B and seizes some of Nation B's land, then Nation A's possession is, strictly speaking, illegal, but it can continue as honourable ownership, after war has concluded, even though any further seizures of land would be unjust. Over time, however, Nation A should restore the liberty of the land it has appropriated (but it should not do that too quickly if such restoration would disturb the peaceful arrangements following the war). [\[Back to Text\]](#)

⁴[Kant's note] It is commonly assumed that someone may not act in a hostile manner against any other person, unless the latter has already done something to harm him first. This is entirely correct when both of them are in living in a *civil community governed by law*. For, since each of them has entered this community, they each afford the other the security he requires (thanks to the authority which has power over them both). But a human being (or a people) in a mere state of nature removes from me this security and simply by living in this state inflicts harm on me because he is close by. This harm may not be active (*facto*), but, given the lawlessness of his condition (*statu iniustu* [*a state of injustice*]), he is a constant threat to me. I can require him either to enter with me into the state of a community ruled by law or to move away from my neighbourhood. So the hypothesis which forms the basis of all the following articles is this: All people who can exercise a reciprocal influence on each other must share some form of civil constitution.

Depending on the people who are covered its provisions, a legal constitution is one of the following:

1. one formed in accordance with the rights of *citizenship of the individuals* making up a people (*ius civitatis*);
2. one formed in accordance with *international law* for states in relation to one another (*ius gentium*);
3. one formed in accordance with *cosmopolitan law*, insofar as individuals and states standing in an external relationship of reciprocal influence are to be viewed as citizens in a universal human state (*ius cosmopoliticum*).

These divisions are not arbitrary, but are necessarily related to the idea of perpetual peace. For if even one of these elements in society was in a position to exercise physical influence on another and yet was still in a state of nature, then a condition of war would be joined, the very situation from which our purpose here is to free ourselves.

[Translator's note] These three constitutions (which confer legal rights) affect individuals because they are members of a particular state and thus have civil rights, because they are citizens of a state which has forged international agreements with other states and thus have international rights, and because they are all human beings and thus have human rights. In a state of nature, where there is no constitution, as free and equal people, we still have private rights, but it is not clear in Kant (here and elsewhere) what these amount to exactly. Since there is no constitution in a state of nature, there is no law and hence no authority to guarantee or enforce such private rights. [\[Back to Text\]](#)

⁵[Kant's note] Lawful (hence external) *freedom* cannot be defined, as people so often do, as the right "to do anything one wishes, provided one's actions do not injure anyone else." For what does this *right* mean? The possibility of an action so long as in carrying it out one does not injure another. So the explanation for the authority would be "a person does not wrong someone else (no matter what he does) if he does not wrong someone else"—and thus is an empty tautology. Rather than that, the explanation for my external (lawful) *freedom* is as follows: it is the right to obey no external laws, other than those to which I could have given my consent. In just the same way, external (legal) *equality* in a state is that relationship among the citizens according to which no person can legally bind another, unless at the same time he submits himself to the law by which he, in turn, *could* be bound in the same way by the other person. (The principle of *lawful* dependence requires no clarification, for it is

already present in the general idea of a political constitution). The validity of these inherited and inalienable rights, which necessarily belong to mankind, is confirmed and ennobled by the principle of the lawful relationship between man himself and higher beings (when he believes in them), because, in keeping with these very principles, he sees himself also as a citizen of a supernatural world. For where my freedom is concerned, I have no binding obligation even with respect to divine laws, which I can recognize only with my reason, except insofar as I myself could have consented to them (for through the law of freedom of my own reason I first create for myself an idea of the Divine Will). Where the principle of equality is concerned in connection with the most exalted being in the world other than God, a presence I could perhaps picture for myself (say, a great Aeon), there is no reason why, if I carry out the duties of my position, as Aeon carries out his, I should be the only one with the obligation to obey and he should be the one with the right to command. This principle of *equality* (like that of freedom) does not extend to our relationship with God, because this Being is the only one to whom the idea of duty does not belong.

However, where the right to equality of all citizens as subjects is concerned, the answer to the question about the admissibility of a *hereditary aristocracy* depends solely on the following question: “Does the *rank* endorsed by the state (which makes one subject superior to another) take precedence over *merit*, or does merit have to take precedence over rank?” Now, this much is clear: when rank is tied in with birth, it is completely uncertain whether merit (skill and integrity in discharging one’s office) will follow as well. Thus, a hereditary aristocracy amounts to awarding the favoured person a position (making him a commander) without his having any merit. This arrangement is something the general will of the people would never agree to in the original contract (which is the principle of all right). For the fact that someone is a nobleman does not immediately make him a *noble* man. So far as the *nobility of an official* is concerned (a term we might use to describe the rank of a higher magistrate, which someone must earn by merit), the rank is not attached to the person, like a possession, but to the position, and equality is not harmed by this, because when someone gives up his official position, he also sets aside his rank and moves back among the people. [\[Back to Text\]](#)

⁶[*Kant’s note*] People have often criticized the lofty titles which are frequently given to a ruler (e.g., the Lord’s Anointed, the Representative of the Divine Will on Earth, and the Vicar of God) as gross, dizzying flattery. But, in my view, this criticism has no foundation. Far from making a sovereign arrogant, these titles must rather make his soul humble, if he has any common sense (which we must assume he has), for they remind him that he has undertaken an office which is too great for any man, that is, the holiest which God has on earth, the *right to rule mankind*, and he constantly has to worry about offending this apple of God’s eye in some way or other.

[*Translator’s note*] Frederick II (1712-1786)—Frederick the Great—was King of Prussia. [\[Back to Text\]](#)

⁷[*Kant’s note*] In his brilliant sounding but hollow and superficial language, Mallet du Pan brags that after many years of experience he has finally become convinced of the truth of Alexander Pope’s famous saying: “For Forms of Government let fools contest;/ Whate’er is best administered is best.” If that amounts to saying that the best administered government is the one which is best administered, then Pope has, to use Swift’s expression, bitten open a nut and been rewarded with a maggot. But if it means that the best administered government is also the best form of government, i.e., the best constitution, then it is completely false. For examples of good leadership prove nothing about the form of government. Who has governed better than *Titus* and *Marcus Aurelius*, and yet one left *Domitian* as his successor and the other *Commodus*? That could not have happened with a good political constitution, for the fact that they were unfit for this position was known sufficiently early, and the ruler was powerful enough to prevent their succession.

[*Translator's note*] Jacques Mallet du Pan (1749-1800) was a Swiss journalist. The lines from Alexander Pope (1688-1744) are taken from *The Essay on Man*. Kant quotes the lines in German, but in the text above the quotation comes from Pope's text directly. Titus (39-81 AD), Marcus Aurelius (121-180 AD), Domitian (51-95 AD), and Commodus (161 to 192 AD) were all Roman emperors. [[Back to Text](#)]

⁸[*Kant's note*] A Greek emperor in a generous mood offered to fight a Bulgarian prince in single combat in order to end a conflict between them. The prince replied: "A blacksmith who has tongs will not take red hot iron from the coals with his own hands." [[Back to Text](#)]

⁹[*Translator's note*] Hugo Grotius (1583-1645) was a Dutch jurist whose writings had a great influence on developments in international law; Samuel Pufendorf (1632-1694) was a German philosopher who wrote extensively on politics and law; Emmerich de Vattel (1714-1767) was a Swiss philosopher and diplomat who wrote about international law (among other things). [[Back to Text](#)]

¹⁰[*Kant's note*] Once a war has ended and peace treaty has been signed, it might not be inappropriate for a nation to announce a day of penance after its holiday of thanksgiving and, in the name of the state, to pray to heaven for mercy for the great sin which the human race is guilty of to this day, because in its interactions with other nations it is unwilling to agree to a legal constitution. Instead it takes pride in its national independence and would ratrictory her use the barbaric method of war (which, however, does not resolve what is looked for, namely the right of each state). The celebrations of thanksgiving during the war for a which has been fought and won and the hymns which people sing to the *Lord of Hosts* (to use a fine Israelite expression) stand in just as sharp a contrast to the moral idea of a *Father of Mankind*, because, apart from the indifference these show to the methods nations use to seek their mutual rights (which is sad enough), they introduce a sense that people are celebrating the fact that the happiness or the lives of a great many people have been destroyed.

[*Translator's note*] Nation states endorse the idea that they have rights, and this implies that these states accept the authority of reason (since the idea of rights arises from reason). Hence, they ought to accept the establishment of a rational solution to world peace (the thesis, or *in thesi*). But their desire for no interference in their state sovereignty prevents the establishment of what is rationally necessary, a government of nations (the hypothesis, or *in hypothesisi*). [[Back to Text](#)]

¹¹[*Kant's note*] In order to call this great empire by the name which it uses for itself (that is *China*, not *Sina* or a word which sounds similar), we need only to examine Georgius's: *Alphab. Tibet* [*Antonio Georgi, Alphabetum Tibetanum, 1762*], pp. 651 to 654, particularly Note b at the bottom. According to the observation of Professor *Fischer* from St. Petersburg, there is really no fixed name this state uses to identify itself. The most common is still the word *Kin*, meaning gold (which the Tibetans express as *Ser*). Thus, the emperor is called the King of *Gold* (king of the most beautiful land in the world). The word *Kin*, which in the empire itself is probably pronounced *Chin*, may have become *Kin* in the speech of Italian missionaries (because of the guttural sounds). From this, we see the land of the *Seres*, called that by the Romans, was China. The silk, however, was sent to Europe across *Greater Tibet* (probably through *Lesser Tibet* and Bukhara, across Persia, and then on from there). These points lead to many reflections about the age of this astonishing state at the time of its union with *Tibet*, in comparison with the age of Hindustan, and beyond that, with Japan; whereas, the name *Sina* or *Tschina*, which is allegedly given to this land by its neighbours, leads nowhere. Perhaps we can clarify the ancient association of Europe with Tibet from what *Hesychius* maintained about it, something which has never been properly understood, that is, the shout *Kovξ Ομπας* (*Konx Ompax*) made by the hierophant in the *Eleusianian mysteries* (see *The Travels of Anacharsis the Younger*, Part 5, p. 447 ff.). For according to Georgius's *Alph[abetum] Tibet[arum]*, the word *Concioa* means *God*, a word which has a remarkable similarity to *Konx. Pab-cio* (*ibid.*, p. 520), which could easily have

been pronounced by the Greeks as *peace*, means *promulgator legis* [*the one who promulgates the law*], the divine being immanent in all nature (also called *Cencresi*, p. 177). However, *Ohm*, which La Croze translates as *benedictus*, or *blessed*, can, when it describes the divinity, probably mean nothing other than *the beatified one* (p. 507). Now, when P. Franz Horatius [*Father Francisco Orazio*] asked the Lamas of Tibet, whom he often questioned, what they understood by God (*Concioa*), he always received this answer: “*It is the assembly of all the holy ones*” (that is, the blessed ones who, after many wanderings through all kinds of bodies, according to the lama’s doctrine of rebirth, finally return back to the divinity in *Burchans*, that is, they are transmigrated souls, beings worthy of adoration (p. 223). And so that mysterious phrase *Konx Ompax* probably should mean *the holy* (*Konx*), *blessed* (*Om*), and wise (*Pax*) Supreme Being permeating the entire world (the personification of nature), and it was used in the Greek *Mysteries* probably to designate *monotheism* for the Epoptes [*those with repeated experience of the mysteries*], in contrast to the *polytheism* of the people. P. Horatius [*Father Orazio*] (*loc. cit.*), however, suspected *atheism* here. But how that mysterious expression came from Tibet to the Greeks can probably be accounted for by the explanation given above and, conversely, through the early communication of the Europeans with China by way of Tibet (perhaps even earlier than between Europe and Hindustan).

[*Translator’s note*] Father Antonio Geogius (1711-1797) was an Augustine friar who compiled and published materials sent by missionaries back to Italy from Tibet. Hesychius was a Greek living in Alexandria in the 5th century AD. *The Travels of Anacharsis the Younger in Greece*, published in 1788 by Jean Barthelemy, was an imaginary travel journal. Father Francesco Orazio Olivieri della Penna (1680-1745) was an Italian Capuchin missionary in Tibet who produced a small Tibetan-Italian dictionary and translated some Tibetan works into Italian. [\[Back to Text\]](#)

¹²[*Kant’s note*] In the mechanical operations of nature, to which human beings, as sentient beings, belong, a form manifests itself as the fundamental basis of its existence, something which we are incapable of making intelligible to ourselves, unless we conceive of the idea that these operations have a purpose set in advance by the original creator of the world. This predetermination in nature we generally call *Divine Providence*. To the extent that this providence is present in the *beginning* of the world we think of it as a *founding providence* (*providentia conditrix*; *semel iussit, semper parent* [*founding providence*; *when she commands, they always obey*—Augustine). But insofar as it maintains the actions of nature according to universal laws of purposefulness, we call it *ruling providence* (*providentia gubernatrix*). Beyond that, when it manifests itself in special ends which human beings cannot predict but merely suspect from the result, we call it *guiding providence* (*providentia directrix*). Finally, when particular events are involved as divine ends, we no longer talk of providence but of *dispensation* (*directio extraordinaria* [*extraordinary direction*]). Human beings want to explain what these are in their essence, but such a desire is foolish presumptuousness in people, since such events are, in fact, miracles, although they are not called that. For to make conclusions about a special principle of efficient causes on the basis of a single event—to infer that this event is an end and not merely a mechanical and natural consequence of another purpose completely unknown to us—is absurd and full of arrogance, no matter how devout and humble the language used to talk about such things. In the same way, to divide providence (from a *material* viewpoint) in connection with *objects* in the world into *universal* and *particular* is false and self-contradictory (for example, to assert that there may be a providence which maintains the animal species but which leaves the individuals to chance). For we describe providence with the specific term *universal*, so that we do not consider a single thing exempt from it. Technically speaking, by dividing providence like this, people presumably mean here the ways in which it carries out its purpose, that is, they separate it into *ordinary* providence (e.g., the annual death and rebirth in nature according to the changes in the seasons) and *extraordinary* providence (e.g., the way in which the sea currents carry wood to frozen coasts where trees cannot grow, for the

inhabitants there, who could not live without it). In this case, although we can quickly explain the physical-mechanical cause of this phenomenon (for instance, in temperate lands the river banks are overgrown with trees, which fall into the water and are carried far away, perhaps by the Gulf Stream), nonetheless, we must not overlook the teleological cause, which indicates the care of a wisdom ruling over nature. But the idea commonly used in philosophy schools of a divine *collaboration* or *cooperation* (*concursus*) in the operations of the sensible world must be abandoned. For to want to link together two things of different kinds (*gryphes iungere equis* [*to yoke griffins with horses*]) and to allow Him who is Himself the complete cause of the changes in the world to *amend* his own predetermining providence during the running of the world (which thus must have been defective)—for example, to say that next to God the doctor healed the patient, and so He was there as a support—is, *firstly*, inherently contradictory. For *causa solitaria non iuvat* [*an isolated cause does not help*]. God is the creator of the doctor and of all his remedies, and so, if we want to ascend to the highest cause, which is theoretically inconceivable to us, we must ascribe the effect *entirely* to Him. Or we can also give the *entire* credit to the doctor, insofar as we explain this event in terms of natural order in the chain of causes in the world. *Secondly*, such a way of thinking destroys all the fixed principles by which we assess an effect. But from the view of *practical morality*, which is directed entirely at the transcendent world, the idea of a divine *concursus* [*cooperation*] is entirely fitting and even necessary, for example, the belief that, if only our basic convictions are sincere, God will make up for the defects in our own justice, even with means incomprehensible to us, and thus we should not relax our striving for what is good. From this it clearly follows that no one has to *explain* a good action (as an event in the world) by appealing to such cooperation, for that would be assuming a theoretical understanding of the supersensible, and consequently it would be illogical.

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¹³[*Translator's note*] In Greek mythology, Icarus and his father Daedalus put on artificial wings to fly over the sea away from Crete. Icarus flew too high, and the sun melted the wax which held the feathers of his wings in place. As a result, he fell into the sea and drowned.

Kant's point here is that we cannot, on the basis of designs in nature, make any theoretical conclusions about supersensible beings (e.g., God), because we cannot use our sense experience to make claims about what lies beyond sense experience. However, from a point of view of practical morality we must assume the purposefulness of nature and assist its mechanical operations in order to move closer to perpetual peace. [\[Back to Text\]](#)

¹⁴[*Kant's note*] Of all the ways of life, *hunting* is undoubtedly the one most incompatible with a civilized constitution. For the families must live separate from each other, soon become strangers, and then, as they scatter across the sprawling forests, quickly become *enemies*, since each of them needs a great deal of room to obtain its food and clothing. *The blood prohibition* Noah received in Genesis, IX, 4-6 (which was often repeated and which later was even imposed as a condition by Jewish Christians on those recently converted from paganism to Christianity—although they had something else in mind, Acts XV, 20, XXI, 25) appears originally to have been nothing other than a prohibition against the *hunter's way of life*, for with hunters the opportunity to eat raw meat must often occur, and so when they banned the eating of raw meat, they also banned hunting. [\[Back to Text\]](#)

¹⁵[*Kant's note*] We could ask the following: If nature has willed it that these icy coasts should not remain uninhabited, what will become of the people living there if the time comes (as we can expect) when no more driftwood is carried to them? For we can well believe that with further cultural developments the inhabitants of the temperate zones of the earth will make better use of the wood which grows on the banks of their rivers and will not let it fall into the streams and thus be carried away by the sea. My answer is that the inhabitants who live along the Ob, the Yenisei, the Lena, and so on will supply the wood

through trade, accepting in exchange the animal products in which the Arctic seas are so rich, but only when nature has first forced them to make peace among themselves. [\[Back to Text\]](#)

¹⁶*[Translator's note]* Friedrich Bouterwek (1766-1828) was a German philosopher, critic, historian, and novelist. [\[Back to Text\]](#)

¹⁷*[Kant's note]* *Difference of religion!* An odd expression, as if one were speaking about different *moralities*. There can certainly be historically different *forms of belief*, not in religion but in the history of the ways used to promote religion—a subject for scholarly investigation. In the same way there are different *religious books* (the *Zendavesta*, *Vedas*, *Koran*, and so on), but there is only one *religion*, valid for all human beings and for all ages. These therefore can be considered nothing other than the mere vehicles of religion—something accidental—which can vary according to differences in time and place. [\[Back to Text\]](#)

¹⁸*[Translator's note]* The Second Supplement was not in the original (1795) edition of *Perpetual Peace*. It was added to the second edition of 1796. [\[Back to Text\]](#)

¹⁹*[Translator's note]* In this curious and interesting addition to the original text of his essay, Kant is urging rulers to let philosophers speak openly about political matters involving war and peace, so that the rulers can benefit from their advice, while keeping such assistance a secret, because openly accepting the advice of their subjects might be demeaning to the rulers. They can do this safely, he claims, because philosophers are politically ineffectual. [\[Back to Text\]](#)

²⁰*[Kant's note]* These are the permissive laws of reason. They allow us to leave in place a system of public law which is tainted with injustice, until such time as everything has matured and is ready for a complete revolution, either spontaneously or encouraged and brought close to fruition by peaceful means. For any *legal* constitution, even if it bears only a slight resemblance to what is right, is better than none at all, for the latter fate (anarchy) is what comes about through *overhasty* reforms. Hence, political wisdom will make it a duty to enact reforms which are appropriate to the ideal of public right, given the present political conditions, but will not use revolutions, when these have been brought about by nature herself, as pretexts for even greater oppression, but rather as the cry of nature summoning it to introduce fundamental reforms so as to bring in a lawful constitution based upon the principles of freedom, the only constitution which endures. [\[Back to Text\]](#)

²¹*[Translator's note]* The term *a priori* (which occurs frequently in Kant's text) refers to a form of knowledge which is not based on experience but on pure reasoning. [\[Back to Text\]](#)

²²*[Kant's note]* Even though some still may question whether with *people* living together in a state there is a certain wickedness rooted in *human nature* and, instead of that, propose, with some apparent plausibility, that a lack of culture, which has not yet progressed far enough (their crudity) is the cause of the hostility to law which their way of thinking demonstrates, nonetheless, in the external relationships of *states* with each other, such wickedness manifestly and incontestably reveals itself. Within every state, this is concealed by the coercive force of civil law, because the inclination of the citizens to commit reciprocal acts of violence is powerfully offset by a greater force, namely, the government. This not only gives the whole state the appearance of morality (*causae non causae* [*a non-cause as the cause*]), but also, by clamping down on the outbreak of tendencies hostile to the law, truly makes it much easier for human beings to develop a moral aptitude which leads to an immediate respect for what is right. For every individual believes of himself that he would surely hold the idea of right sacred and truly follow it, if he could only be assured that everyone else would do the same. This assurance is guaranteed for him, in part, by the government, and that constitutes a great step *towards* morality (although it is not yet a moral step)—towards the idea of duty for its own sake, without relying on any thoughts of a return. However, since everyone, with his good opinion

of himself, still assumes an evil disposition in all the others, people mutually judge each other as follows: all of them, as a *matter of fact*, are worth little (where this judgment comes from may remain unaccounted for, since it cannot be the fault of the *nature* of man, as a free being). However, since respect for the idea of right, which human beings find impossible to shake off, sanctions in the most solemn way the theory of our capacity to conform to it, so every individual sees that, for his part, he must act in accordance with it, no matter how others may behave. [\[Back to Text\]](#)

²³*[Translator's note]* This statement is one formulation of Kant's famous and influential Categorical Imperative, the centre piece of his moral philosophy (explained in his *Groundwork for the Metaphysics of Morals*). As rational moral beings, no matter what our circumstances or desires, we have an obligation to act in such a way that the precept we use to guide our actions could become a universal law, without thereby creating a contradiction. For Kant, all moral duties stem from this objective rule of reason (rather than from consequences, or prudential maxims, or desires, and so on). Kant is concerned here to stress the primary importance of the rational idea of moral duty (as compared with a morality based upon political expediency). [\[Back to Text\]](#)

²⁴*[Translator's note]* The German word *Dienstadel* (sometimes translated as *nobles of the robe*) refers to members of the French nobility who derived their titles from the posts they occupied in the royal government. Nowadays, we might use a phrase like "an aristocracy made up of civil servants." [\[Back to Text\]](#)

²⁵*[Translator's note]* *Probabilism* is a theory which claims that certainty is unattainable and therefore one is justified in doing what is probable, even at times when something different may appear more probable.

[Kant's note] One can find evidence for such maxims in Hofrat Garve's treatise "Concerning the Union of Morality and Politics, 1788." This worthy scholar concedes at the outset that he cannot give a satisfactory answer to this question. But nonetheless, his approval of such maxims, even with the admission that he is unable completely to remove the arguments raised against them, seems to be an even greater concession to those who would be very inclined to misuse them than it is perhaps advisable to allow.

[Translator's note] Christian Garve (1742-1798) was a philosopher who explored the issues of morality and politics. [\[Back to Text\]](#)